

SENATE No. 3085

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 by striking all after the enacting clause and inserting in place thereof the following:-

2 "SECTION 1. Chapter 6 of the General Laws is hereby amended by adding the following
3 3 sections:-

4 Section 223. For the purposes of this section and sections 224 and 225, the following
5 words shall, unless the context clearly requires otherwise, have the following meanings:

6 "Civil immigration enforcement", any and all efforts to investigate, enforce or assist in
7 the investigation or enforcement of any federal civil immigration law.

8 "Judicial warrant" or "judicial order", an arrest warrant or other judicial order, issued by
9 a judge or magistrate sitting in the judicial branch of a local or state government or of the federal
10 government, authorizing an arrest.

11 "Law enforcement agency", (i) a state, county, municipal or district law enforcement
12 agency, including, but not limited to: (a) a city, town or district police department; (b) the office
13 of environmental law enforcement; (c) the University of Massachusetts police department; (d)
14 the department of the state police; (e) the Massachusetts Port Authority police department, also
15 known as the Port of Boston Authority police department; and (f) the Massachusetts Bay

Transportation Authority police department; (ii) a sheriff's department in its performance of police duties and functions; (iii) a public or private college, university or other educational institution or hospital police department; (iv) a federal law enforcement agency; or (v) a humane society police department in section 57 of chapter 22C.

"Law enforcement officer", (i) any officer of a law enforcement agency, including the head of the law enforcement agency; (ii) a special state police officer appointed pursuant to section 57, section 58 or section 63 of chapter 22C; (iii) a special sheriff appointed pursuant to section 4 of chapter 37 performing police duties and functions; (iv) a deputy sheriff appointed pursuant to section 3 of said chapter 37 performing police duties and functions; (v) a constable executing an arrest for any reason; or (vi) any other special, reserve or intermittent police officer.

"Person", a resident of, or visitor to, the commonwealth regardless of immigration status.

"Private entity", (i) a private organization employing, enrolling or admitting to membership 10 or more people; or (ii) any private organization receiving state funds.

"State agency", (i) any department, board, commission, division or authority of the state government or subdivision of any of the foregoing, or official of the state government, authorized by law to make regulations or to conduct adjudicatory proceedings; (ii) the general court and any special legislative commission created by the general court; and (iii) any quasi-state agency.

"State entity", any land, building, or part thereof, owned, leased, occupied, controlled by or used for business by the commonwealth, except for state courthouses.

36 Section 224. (a) Except as required by state or federal law or as required to administer a
37 state or federally supported or funded program and consistent with the United State Constitution,
38 the governor may prohibit, or otherwise limit, in nonpublic areas of any state entity, civil
39 immigration enforcement activities.

40 (b) The governor shall direct the executive office of administration and finance, pursuant
41 to chapter 30A, to promulgate rules or regulations necessary for the administration and
42 enforcement of this section; provided, however, that the rules or regulations may identify state
43 entities requiring prioritization to minimize violations of people’s civil rights related to civil
44 immigration enforcement.

45 Section 225. (a) The governor, in consultation with the attorney general, shall publish
46 multilingual guidelines for all state agencies and private entities on how to handle interactions
47 with law enforcement officers involved in civil immigration enforcement. The multilingual
48 guidelines shall include, but shall not be limited to, guidance on:

49 (i) designating a contact person or persons to be notified of the presence of, or
50 information requests from, law enforcement agents engaged in civil immigration enforcement;

51 (ii) verifying the identity and authority of any law enforcement officer engaged in civil
52 immigration enforcement;

53 (iii) verifying the validity of any judicial warrant or judicial order provided or valid
54 immigration detainers under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8
55 U.S.C. § 1357

(iv) documenting and maintaining records of all interactions with law enforcement agents engaged in civil immigration enforcement; and

(v) informing all persons how to respond to requests relating to civil immigration enforcement.

(b) The governor, in consultation with the attorney general, shall publish multilingual guidelines for all law enforcement agencies on how to handle interactions between law enforcement officers and people regarding civil immigration enforcement. The multilingual guidelines shall include, but shall not be limited to, guidance on:

(i) the duties and responsibilities of law enforcement agencies and law enforcement officers related to civil immigration enforcement;

(ii) reporting on activities of law enforcement officers involved in civil immigration enforcement that are conducted in the presence of local and state law enforcement; and

(iii) providing any report of activities of law enforcement officers involved in civil immigration enforcement to the attorney general for review and enforcement.

(c) The governor, in consultation with the attorney general, shall publish multilingual guidelines explaining individual civil rights related to federal immigration enforcement, including, but not limited to, guidelines on how people can contact legal services related to civil immigration enforcement.

(d) The governor, in consultation with the attorney general, shall publish multilingual guidelines for all school districts, as defined in section 2 of chapter 70, on how to handle

interactions with law enforcement officers regarding civil immigration enforcement. The multilingual guidelines shall include, but shall not be limited to, guidance on:

(i) designating a contact person or persons to be notified of the presence of, or information requests from, law enforcement agents engaged in civil immigration enforcement;

(ii) verifying the identity and authority of any law enforcement officer engaged in civil immigration enforcement;

(iii) verifying the validity of any judicial warrant or judicial order, or valid immigration detainers under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8 U.S.C. § 1357

(iv) documenting and maintaining records of all interactions with law enforcement agents engaged in civil immigration enforcement;

(v) informing all persons how to respond to requests relating to civil immigration enforcement; and

(vi) any other information the governor and the attorney general deems relevant for school districts.

(e) The governor shall post the published guidelines pursuant to this section prominently on the commonwealth's website.

SECTION 2. Chapter 127 of the General Laws is hereby amended by inserting after section 87A the following section:-

Section 87B. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Competent interpreter services”, as defined in subsection (a) of section 25J of chapter 111.

“County correctional facility”, as defined in section 1 of chapter 125.

“Facility”, any state correctional facility, state prison, county correctional facility, house of correction or prerelease center, that houses detained individuals. “Facility” shall not include courthouses.

“State correctional facility”, as defined in section 1 of chapter 125.

(b) This section shall apply to any facility.

(c) Upon intake, each facility shall provide each detained individual with the following written notices, in the individual’s primary language: (i) notice of the right to legal counsel; (ii) notice of the right to decline interviews by state or federal law enforcement or consular officials; (iii) instructions for contacting legal counsel and legal services; and (iv) the procedures for confidential legal communications and grievance review.

(d)(1) Each facility shall ensure confidential, unmonitored attorney-client telephone communications.

(2) Each facility shall provide a verified legal counsel phone line allowing the legal counsel of record to complete not less than 1 confidential inbound call per day with the detained individual; provided, however, that if direct inbound calling is technologically infeasible for a facility, the facility shall provide a system for the legal counsel of record to request a confidential callback that shall occur not later than 24 hours after the request by the legal counsel of record.

(e)(1) Each facility shall maintain a record identifying each individual detained in the facility that shall include, but shall not be limited to: (i) confirmation of custody of the detained individual in the facility; (ii) contact-routing information sufficient for legal counsel and a person designated by the detained individual pursuant to clause (ii) of paragraph (2) to maintain contact with the detained individual; and (iii) a facility procedure for legal communications and general inquiries. The record shall be updated not later than 6 hours after intake into the facility and not later than 6 hours after any transfer out of the facility.

(2) A facility shall provide the record to: (i) the legal counsel of record; and (ii) a person designated, orally or in writing, by the detained individual at intake and recorded in the intake record.

(f) Not later than 6 hours after any transfer of a detained individual, to or from the facility, each facility shall make reasonable efforts to notify the legal counsel of record and any designated contact recorded pursuant to clause (ii) of paragraph (2) of subsection (e), including, but not limited to, the name of the receiving facility and instructions for locating the individual.

(g) The facility shall provide competent interpreter services for any: (i) intake materials pursuant to subsection (c); (ii) medical related interactions; (iii) mental and behavioral health related interactions; (iv) disciplinary related interactions; (v) legal-access related interactions; and (vi) grievance related interactions.

(h)(1) No facility shall impede a detained individual's reasonable access to legal counsel or any required proceedings.

(2) Each facility shall provide transportation or functional remote access to mandatory government appointments or any other court proceedings.

(i)(1) Each facility shall provide a public phone number for a caller to obtain confirmation of whether an individual is detained at a facility and shall provide information on how a caller may obtain contact instructions; provided, that the facility may require the caller to provide the individual's full name, date of birth and additional identifying information, as necessary, to resolve multiple matches.

(2) Each facility shall limit disclosure to the minimum information necessary to locate and contact the detained individual.

(3) Each facility shall maintain audit logs of access attempts and disclosures for not less than 1 year.

(4) Each facility shall implement reasonable identity verification, auditing and privacy safeguards.

(5) Each facility shall adopt written policies for identity verification and access control.

(j) The secretary of public safety and security, in consultation with the attorney general, shall promulgate regulations establishing minimum compliance standards and requirements for written policies at each facility.

(k)(1) The attorney general may enforce this section by a civil action brought in the superior court for declaratory, injunctive and other equitable relief to compel compliance or prevent violations.

(2) In an action brought under this section, the court may issue emergency, long-term and permanent orders, including, but not limited to: (i) an order requiring immediate compliance with

a statutory duty; (ii) an order prohibiting conduct that violates this section; (iii) a compliance plan with deadlines; and (iv) reasonable monitoring and periodic reporting to the court.

(3) Nothing in this section shall be construed to create a private right of action; provided, however, that nothing herein shall limit any remedy otherwise available under law.

SECTION 3. Chapter 147 of the General Laws is hereby amended by adding the following section:-

Section 64. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Articulable, case-specific reason”, necessary to prove an element of a criminal offense that is specific to the facts of that case and documented in the applicable incident report or case file.

“Civil immigration process”, any civil immigration detainer request, administrative warrant, notice to appear, removal order or other civil immigration document not issued by a judge of a court of competent jurisdiction upon a finding of probable cause.

“Federal immigration authority”, the United States Department of Homeland Security, U.S. Immigration and Customs Enforcement, U.S. Customs and Border Protection or any successor entity, and any person acting on their behalf.

“Law enforcement agency”, (i) a state, county, municipal or district law enforcement agency, including, but not limited to, a city, town or district police department, the office of environmental law enforcement, the University of Massachusetts police department, the department of the state police, the Massachusetts Port Authority police department, also known

as the Port of Boston Authority police department, and the Massachusetts Bay Transportation Authority police department; (ii) a sheriff's department; (iii) a public or private college, university or other educational institution or hospital police department; or (iv) a humane society police department in section 57 of chapter 22C.

"Law enforcement officer" or "officer", any officer or employee of an agency, including the head of the agency; a special state police officer appointed pursuant to section 57, section 58 or section 63 of chapter 22C; a special sheriff appointed pursuant to section 4 of chapter 37; a deputy sheriff appointed pursuant to section 3 of said chapter 37; a constable executing an arrest for any reason; or any other special, reserve or intermittent police officer.

"Nonpublic personal information", information not otherwise available to the public that is maintained by a law enforcement agency or political subdivision.

(b)(1) For purposes of this subsection, a person's immigration or citizenship status shall be deemed directly material only when necessary to establish an element of a specific criminal offense under the laws of the commonwealth and shall not be deemed directly material for assessing credibility, cooperation or for general information gathering.

(2) No law enforcement officer or employee of a law enforcement agency shall:

(i) except as required by federal or state law, or pursuant to a judicial warrant, court order or treaty, or valid immigration detainer under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8 U.S.C. § 1357 inquire about the immigration or citizenship status of any person; provided, however, that a law enforcement officer may make such inquiry only when the officer has an articulable, case-specific reason to believe the person's immigration or citizenship status is directly material to an element of a specific criminal offense under the laws of the

commonwealth being investigated and the officer documents that reason in the incident report or case file;

(ii) record or maintain immigration or citizenship status information except as required by federal, state law, treaty or as documented pursuant to clause (i);

(iii) except as required by federal or state law, or pursuant to a judicial warrant, court order or treaty, or valid immigration detainers under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8 U.S.C. § 1357, use state or local resources for a federal civil immigration enforcement action; or

(iv) except as required by federal or state law, or pursuant to a judicial warrant, court order or treaty, or valid immigration detainer under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8 U.S.C. § 1357, initiate contact with any federal authority to: (A) provide nonpublic personal information to a federal immigration authority; or (B) provide advance notice of the release date of a person, including, but not limited to, a person convicted pursuant to chapter 265, except for sections 9, 10, 11, 12, 30, 32, 34, 35, 36, 40, and 42 of chapter 265; provided, however, that the release date of a person's completed sentence, including, but not limited to, a sentence for a conviction pursuant to chapter 265, except for sections 9, 10, 11, 12, 30, 32, 34, 35, 36, 40, and 42 of chapter 265, may be provided.

(c)(1) No law enforcement agency or political subdivision of the commonwealth shall execute, renew or materially expand a memorandum of agreement under section 287(g) of the federal Immigration and Nationality Act or any substantially similar agreement or arrangement that deputizes state or local law enforcement officers or personnel to perform civil immigration enforcement functions; provided, however, that the department of correction may maintain the

223 memorandum of agreement under section 287(g) of the federal Immigration and Nationality Act
224 8 U.S.C. § 1357 in effect as of June 8, 2020; and provided further, that the department of
225 correction shall apply to the executive office of public safety and security to renew or materially
226 expand a memorandum of agreement under section 287(g) of the federal Immigration and
227 Nationality Act 8 U.S.C. § 1357 or any substantially similar agreement or arrangement that
228 deputizes state or local law enforcement officers or personnel to perform civil immigration
229 enforcement functions or to execute any new agreements.

230 (2) Notwithstanding paragraph (1), a law enforcement agency may apply to the secretary
231 of public safety and security for a time-limited agreement not greater than 12 months, pursuant to
232 section 287(g) of the federal Immigration and Nationality Act 8 U.S.C. § 1357; provided, that the
233 agreement shall be restricted solely to criminal public safety purposes and shall not authorize
234 civil immigration enforcement; provided further, that: (i) the agreement shall be limited to
235 cooperation in the execution of criminal warrants or criminal process issued by a court of
236 competent jurisdiction; (ii) the application shall demonstrate an articulable, imminent public
237 safety interest; (iii) the secretary of public safety and security shall issue a written determination
238 after public notice and comment and consultation with the attorney general; (iv) the attorney
239 general shall prepare and publish, contemporaneously with the secretary's written determination,
240 a written legal analysis assessing compliance with this subsection and identifying material legal
241 risks, including potential federal preemption or intergovernmental immunity concerns; (v) any
242 approval of an application shall sunset not later than 12 months after issuance; provided, that no
243 application shall be automatically renewed; and provided further, that a law enforcement agency
244 may submit a new application pursuant to this paragraph for an additional 12 months; and (vi) the

law enforcement agency shall file quarterly public reports, available on the law enforcement agency's website, describing implementation, excluding personally identifying information.

(d) Nothing in this section shall be construed to: (i) prohibit or restrict sending to, or receiving from, federal immigration authorities information regarding an individual's citizenship or immigration status as described in 8 U.S.C. § 1373 or 8 U.S.C. § 1644; or (ii) limit cooperation with federal authorities in the investigation or prosecution of criminal offenses, including compliance with judicial warrants, subpoenas or court orders, or valid immigration detainers under 8 C.F.R. § 287.7, 8 U.S.C. § 1103(a)(3), 8 U.S.C. § 1226, and 8 U.S.C. § 1357

(e)(1) The attorney general may enforce this section by a civil action brought in the superior court for declaratory, injunctive and other equitable relief to compel compliance or prevent violations.

(2) In an action under this section, the court may issue emergency, long-term and permanent orders, including, but not limited to: (i) an order requiring immediate compliance with a statutory duty; (ii) an order prohibiting conduct that violates this section; (iii) a compliance plan with deadlines; and (iv) reasonable monitoring and periodic reporting to the court.

(3) Nothing in this section shall be construed to create a private right of action; provided, however, that nothing herein shall limit any remedy otherwise available under law.

SECTION 4. Section 19C of chapter 149 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the second paragraph the following paragraph:-

Except as required by federal law, not later than 48 hours after receiving a notice of inspection by U.S. Immigration and Customs Enforcement for I-9 employment eligibility verification forms or other employment records, each employer shall provide written notice to each employee of any such request.

SECTION 5. The General Laws are hereby further amended by striking out chapter 258F and inserting in place thereof the following chapter:-

Chapter 258F

CERTIFICATION FOR VICTIMS OF CRIMINAL ACTIVITY AND HUMAN TRAFFICKING

Section 1. As used in this chapter, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Certifying entity”, any law enforcement agency, any district attorney and the attorney general.

“Helpful” or “helpfulness”, as described in 8 U.S.C. § 1101 or any related guidance and required on the applicable federal certification form; provided, that “helpfulness” shall include being helpful in the past, currently being helpful or being likely to be helpful.

“Qualifying criminal activity”, (i) criminal activity described in 8 U.S.C. § 1101(a)(15)(U)(iii) and severe forms of trafficking in persons described in 8 U.S.C. § 1101(a)(15)(T); and (ii) any offense under the laws of the commonwealth or a political subdivision thereof that is substantially similar.

285 Section 2. A certifying entity may certify a request of a victim of qualifying criminal
286 activity who intends to petition for a nonimmigrant visa under 8 U.S.C. § 1101(a)(15)(U) or from
287 a victim of severe forms of trafficking in persons who intends to petition for a nonimmigrant visa
288 under 8 U.S.C. § 1101(a)(15)(T), pursuant to this chapter. For purposes of determining whether a
289 person is a victim of qualifying criminal activity for certification, a certifying entity shall not
290 require the filing of criminal charges or a conviction. For purposes of certification decisions
291 under this chapter, allegations of wage theft, workplace safety violations, housing violations or
292 labor exploitation accompanied by threats of deportation, intimidation or retaliation may
293 constitute qualifying criminal activity where the alleged conduct is reasonably consistent with
294 extortion, coercion, involuntary servitude, peonage, obstruction of justice, witness intimidation
295 or other substantially similar offenses under state or federal law.

296 Section 3. Each certifying entity shall adopt, publish and maintain a written certification
297 policy consistent with this chapter and the regulations promulgated pursuant to section 6. The
298 policy shall include, but shall not be limited to: (i) identification of a designated certifying
299 official within the certifying entity and an alternate; (ii) a description of how requests may be
300 submitted, which shall include, but not be limited to, by email, through legal counsel or through
301 an authorized advocate; (iii) objective criteria used to assess whether a person is a victim who
302 meets the requirements for helpfulness consistent with federal certification forms; (iv) a
303 prohibition of consideration of the applicant's immigration admissibility or eligibility beyond the
304 determinations required by the federal certification form; (v) a prohibition of any fee; and (vi) a
305 description of the certifying entity's internal review process for denials.

306 Section 4. (a) Not later than 45 days after receiving the request, a certifying entity shall
307 respond to a certification request from a victim of qualifying criminal activity who intends to

petition for a nonimmigrant visa under 8 U.S.C. § 1101(a)(15)(U) or from a victim of severe forms of trafficking in persons who intends to petition for a nonimmigrant visa under 8 U.S.C. § 1101(a)(15)(T).

(b) If the applicant, or the applicant's counsel or advocate, certifies that the applicant is in federal removal proceedings or has a scheduled immigration court hearing within 45 days or has a derivative beneficiary as described in 8 U.S.C. § 1101(a)(15)(T)(ii)(III) who will age out within 45 days, the certifying entity shall respond not later than 14 business days after receiving the request; provided, however, that if extraordinary circumstances outside of the certifying entity's control prevent the certifying entity from responding within 14 business days after receiving the request, the certifying entity shall provide a written explanation of the delay to the applicant, or the applicant's counsel or advocate, which shall include a projected response date.

(c) The certifying entity shall respond by: (i) completing and signing the applicable federal certification form; (ii) issuing a written denial without prejudice that states the specific reasons the request does not meet the requirements of the entity's policy under section 3 and identifies the internal review process; or (iii) issuing a written explanation of delay as provided in subsection (b).

Section 5. (a) A certifying entity shall establish a rebuttable presumption of helpfulness for any victim who timely reports qualifying criminal activity and is willing to be helpful or provide information in a manner reasonably requested by the certifying entity. A certifying entity shall not deny a request solely because: (i) no arrest was made; (ii) the case was closed; (iii) the victim has a criminal record unrelated to the qualifying criminal activity; or (iv) the victim chose to exercise constitutional rights.

(b) No state or local employee shall report or threaten to report an individual to federal immigration authorities in retaliation for seeking certification, reporting a crime, participating in an investigation, filing a labor or civil rights complaint or cooperating with a proceeding.

Section 6. (a) The secretary of public safety and security, in consultation with the attorney general, may promulgate regulations to implement this chapter, including, but not limited to: (i) minimum standards for internal review processes, training and data reporting under this chapter; and (ii) allowing any executive branch agency or its political subdivision to facilitate the submission of an application for certification pursuant to this chapter.

(b) Annually, each certifying entity shall report to the secretary of public safety and security aggregate data sufficient to evaluate compliance, including request volume, response times, approvals, denials and reasons for denial, in a manner that protects confidentiality.

Section 7. Notwithstanding subsection (b) of section 64 of chapter 147, a law enforcement agency may inquire into the immigration or citizenship status of a victim of a crime, witness or person seeking assistance, in accordance with this chapter.

SECTION 6. Chapter 276 of the General Laws is hereby amended by inserting after section 20R the following section:-

Section 20S. (a) Any employee of the Commonwealth considered a court officer pursuant to Chapter 221 Sections 69A, 70A, 71A of the General Laws, who has lawful custody of a person may, upon the direction of a judicial officer, and upon receipt of (1) a written request from United States Immigration and Customs Enforcement requesting detention of such person on the grounds that there is probable cause that such person is a removable alien and (2) an administrative warrant for arrest or warrant of removal/deportation, detain such person for a

reasonable period of time after such person would otherwise be released from custody in order to transfer custody of such person to United States Immigration and Customs Enforcement, provided that the judicial officer has determined that there are specific facts indicating that the person to be detained poses a threat to public safety; and further provided that such person be provided with a copy of such written request; and further provided that in no circumstances shall such detention exceed 12 hours.

(b) As used in subsection (a), “specific facts indicating that the person to be detained poses a threat to public safety” shall mean that, at a minimum, any of the following facts are true with respect to such person:

(1) the person has engaged in or is suspected of terrorism or espionage, or otherwise poses a danger to national security;

(2) the person has been convicted of an offense of which an element was active participation in a criminal street gang, as defined in 18 U.S.C. § 521(a);

(3) the person has been convicted of an offense classified as a felony, other than a state or local offense for which an essential element was the person’s immigration status;

(4) the person has been convicted of an aggravated felony, as defined under 8 U.S.C. § 1101(a)(43); or

(5) the person has been convicted of a crime of (i) domestic violence; (ii) sexual abuse or exploitation; (iii) trafficking in persons in violation of sections 50 or 51 of chapter 265 or like violations of the law of another state, the United States or a military, territorial or Indian tribal authority; (iv) burglary; (v) unlawful possession or use of a firearm; (vi) drug distribution or

trafficking; (vii) second or subsequent operating or driving under the influence; or (viii) any other offense for which the person has been sentenced to time in custody of 180 days or more.

(c) In making such determination under subsection (a), if the appropriate judicial officer does not honor the request from Immigrations and Custom Enforcement, the judicial officer shall detail the reasons therefore in writing, and said determination shall be filed with the Clerk of the Court having jurisdiction over the location of the detention and maintained as a public record. Said determination shall not be subject to impoundment and may only be redacted to protect the names of minors and victims.

(d) This section shall not be construed to give rise to a private right of action and shall not be construed so as to make unlawful any arrest in this commonwealth which would otherwise be lawful.

SECTION 7. Section 58 of chapter 276 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the word “community”, in line 31, the following words:- , the likelihood of imminent deportation.

SECTION 8. Not later than 190 days of the effective date of this act, the rules or regulations required by section 224 of chapter 6 of the General Laws, inserted by section 1, shall be published and posted on the commonwealth’s website; provided, however, that within 30 days of the effective date of this act, the governor shall direct the executive office of administration and finance to publish temporary guidelines pending publication of the final rules or regulations required by subsection (b) of said section 224 of said chapter 6; and provided further, that the governor may direct the executive office of administration and finance to publish emergency

394 regulations pursuant to chapter 30A of the General Laws pending publication of the final rules or
395 regulations required by said subsection (b) of said section 224 of said chapter 6.

396 SECTION 9. Not later than 190 days of the effective date of this act, the guidelines
397 required pursuant to section 225 of chapter 6 of the General Laws, inserted by section 1, shall be
398 published and posted to the commonwealth's website.

399 SECTION 10. Nothing in this act shall be construed to require action inconsistent with
400 any applicable state or federal law to diminish the statutory authority of any law enforcement
401 agency or political subdivision of the commonwealth or executive-branch entity, to prevent the
402 renewal of an existing agreement under section 287(g) of the federal Immigration and
403 Nationality Act, or to require action that would be inconsistent with other legal requirements for
404 a state or federally supported or funded program. Nothing in this act shall be construed to restrict
405 or interfere with the execution of lawful judicial warrants or judicial orders or the enforcement of
406 criminal law. Nothing in this act shall be construed to impact or interfere with any current
407 operations or agreements of the Department of Correction."

408 SECTION 11. Sections 2, 5, and 6 shall take effect 90 days after the effective date of this
409 act.

410 SECTION 12. Section 3 shall take effect 180 days after the effective date of this act."